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| <b>Texas WIC<br/>Health and Human Services Commission</b> |
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Effective December 13, 2024

Policy No. CS:01.0(T)

## **Eligibility Criteria for Program Participation**

### **Purpose**

To ensure Program benefits for those applicants in need.

### **Authority**

7 CFR Part 246.7; 26 TAC Section 366.3

### **Policy**

To be eligible for participation in WIC, applicants shall meet specific criteria defined by federal regulations, state agency (SA) policy and rules.

### **Procedures**

- I. Individuals shall meet the following categorical criteria to be eligible for participation in WIC:
  - A. Women, including non-birth mothers, shall be either pregnant or within six months postpartum if not breastfeeding, or within one year if breastfeeding (See BF 6.0). Proof of abortion, miscarriage, neonatal death or pregnancy is not a requirement for certification.
  - B. Children shall be younger than 5 years of age. Written proof is not required.
- II. Applicants shall meet the requirements for identification and residence as defined in **Policies CS: 05, CS:06.0**.
- III. Applicants shall not exceed the income standards defined in **Policies: CS:07.0, CS:08.0, CS:09**.
- IV. Applicants shall have one or more nutritional risk conditions as defined in **Policy CS:18.0**.

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| <p style="text-align: center;"><b>Texas WIC</b><br/><b>Health and Human Services Commission</b></p> |
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- V. Applicants shall be physically present at each WIC certification or qualify for an exception as defined in **Policies: CS:4.0, CR:07.0**.
- VI. If the applicant meets all the above-referenced criteria for eligibility, she/he may be certified and enrolled in the Program, regardless of citizenship status, as long as there is a caseload opening. Citizenship is not required for program eligibility.
- VII. Local agencies (LAs) shall not limit WIC participation nor deny WIC participants because a WIC applicant or participant does not wish to partake of available health services. For example, a LA cannot require a child to be screened in the LA's well child clinic in order to get WIC benefits.